

23SMCV03611 23SMCV03611

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-09-16

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The court will inquire as to the current sales status. The court is aware of defendant's opposition filed yesterday. It is STRICKEN. The court is inclined to set an OSC re: sanctions for defendant's election to ignore court procedures and engage in an ambush of the court and plaintiff. The sanctions would not exceed \$1500 payable to the court and would be against counsel and defendant.

Plaintiff is correct regarding rentals. The court ORDERS that the unit not be rented out or listed for rent. It must be sold. Defendant is to take all reasonable efforts to do so. To date, the court is not sure what efforts have been made, but the court assumes that defendant has engaged a real estate agent and that the property is now being listed for sale. As to disparagement, the court is not certain that the claimed disparagement is such that the court can impose either injunctive relief or a fine, but the court warns defendant not to continue down this path. The court will hold a status conference in the fall, by which time the court expects the property to be sold. The court warns defendant that if the court finds that defendant is not making best efforts to sell the property, the court might well simply order it sold, which would take significant control out of defendant's hands. The court is not saying it will do that, but it does appear that defendant is acting in bad faith, and it is only based on the sale that the matter did not go to trial.